DERRICK LAMONT BEVERLY
Defendant, In Propria Persona Sui Juris
c/o
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Los Angeles, California 90028
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SUPERIOR COURT OF CALIFORNIA,
COUNTY OF LOS ANGELES
CENTRAL DISTRICT
STANLEY-MOSK SUPERIOR COURTHOUSE

FOX NORMANDIE APARTMENTS, LP,	**Case No.: 22STUD06657**
Plaintiff,	**[UNLAWFUL DETAINER]**
v.	**NOTICE OF MOTION AND MOTION TO VACATE OR MODIFY SANCTIONS ORDER; OPPOSITION TO ORDER TO SHOW CAUSE RE SANCTIONS; MEMORANDUM OF POINTS AND AUTHORITIES; DECLARATION OF DERRICK LAMONT BEVERLY EXHIBIT LIST (CCP § 128.7; CCP § 473(b); CRC 2.30, 3.1204)**
DERRICK L. BEVERLY,	
Defendant	

NOTICE OF MOTION AND MOTION TO VACATE OR MODIFY SANCTIONS ORDER; OPPOSITION TO ORDER TO SHOW CAUSE RE SANCTIONS

TO ALL PARTIES AND TO THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on January 27th, 2026, at 8:45 p.m., or as soon thereafter as the matter may be heard, in Department 91 of the above-entitled Court, located at 111 North Hill Street, Los Angeles, California 90012, before the Honorable Mike H. Madokoro, Defendant and judgment debtor DERRICK LAMONT BEVERLY ("Defendant"), in propria persona, will and hereby does move the Court for an order:

1. Vacating or, in the alternative, substantially modifying the sanctions order reflected in the Court's Notice of Ruling and minute order dated January 20, 2026, which awarded Plaintiff FOX NORMANDIE APARTMENTS, LP ("Plaintiff") monetary sanctions in the amount of $2,185.54 pursuant to Code of Civil Procedure section 128.7 and California Rules of Court, rules 2.30 and 3.1204;

2. Discharging the Order to Show Cause re Sanctions, or, in the alternative, reducing any sanctions to a nominal amount consistent with Defendant's indigent, unhoused status and the deterrent purposes of section 128.7(d); and

3. Staying enforcement of the sanctions order pending resolution of this Motion.This Motion is made on the grounds that:

(1) Defendant's ex parte filings were the product of confusion, homelessness, and technological barriers, not any improper purpose to harass or increase costs;

(2) Defendant's nonappearance at the January 20, 2026 sanctions hearing was the result of a documented LACourtConnect technical failure and health-related incapacity, constituting mistake, inadvertence, surprise, or excusable neglect under Code of Civil Procedure section 473(b) and raising due-process concerns;

(3) all procedural defects previously identified by the Court or highlighted by Plaintiff (including notice, proof of service, caption, and contact-information issues) have now been cured through a consolidated Motion practice and a concurrently-filed Notice of Notice and Errata Packet; and

(4) in light of Defendant's indigent and unhoused status, a $2,185.54 monetary sanction is excessive, punitive, and not "limited to what is sufficient to deter repetition" within the meaning of Code of Civil Procedure section 128.7(d).

PLEASE TAKE FURTHER NOTICE that this Motion also serves as Defendant's Opposition to the Court's Order to Show Cause re Sanctions, previously set for January 20, 2026, and is supported by the accompanying Memorandum of Points and Authorities, the Declaration of Derrick LaMont Beverly and attached exhibits, the concurrently-filed Notice of Notice and Errata Packet, all papers and records on file in this action, and such further argument and evidence as may be presented at the hearing.

Defendant has served this Motion and all supporting papers by electronic mail to Plaintiff's designated electronic service address of record, eservice@loacs.com, with a courtesy copy to ada@loacs.com.

DATED: January 27th, 2026

/s/ Derrick LaMont Beverly

DERRICK LAMONT BEVERLY

Defendant, In Propria Persona Sui Juris

MEMORANDUM OF POINTS AND AUTHORITIES

IN SUPPORT OF MOTION TO VACATE OR MODIFY SANCTIONS ORDER

AND OPPOSITION TO ORDER TO SHOW CAUSE RE SANCTIONS

I. INTRODUCTION

Defendant and judgment debtor DERRICK LAMONT BEVERLY ("Defendant") respectfully submits this Memorandum of Points and Authorities in support of his Motion to Vacate or Modify the Court's January 20, 2026 sanctions order and in opposition to the Order to Show Cause re Sanctions.

The Court's ruling imposed $2,185.54 in monetary sanctions under Code of Civil Procedure section 128.7 and California Rules of Court, rules 2.30 and 3.1204, based on a series of ex parte applications Defendant filed in late 2025 in this long-closed unlawful detainer matter. The Court found repeated procedural defects (including notice and proof-of-service issues) and characterized Defendant's filings as frivolous and improper.

Defendant does not dispute that his ex parte practice was procedurally imperfect and that the Court had legitimate concerns regarding serial filings, compliance with California Rules of Court, rule 3.1204, and Department 91's standing orders. Defendant is a self-represented, indigent litigant who has been unhoused since the Sheriff's lockout in January 2023. He has navigated this matter without counsel, from unstable housing, and with limited and inconsistent access to technology, internet, and legal resources.

Sanctions under section 128.7, however, are intended to deter abuse—not to punish impecunious, self-represented litigants for confused attempts to obtain judicial review of serious issues involving notice, default, and harsh forfeiture in a case that resulted in homelessness. Since the Court's admonitions, Defendant has taken concrete steps to correct the defects the Court identified:

- He has consolidated his requests into a single, fully-supported motion with this Memorandum of Points and Authorities, rather than pursuing overlapping serial ex parte applications.

- He has corrected his proofs of service through a Notice of Notice and Errata Packet, standardized his contact information and captions, and committed to email-only service to Plaintiff's designated address, eservice@loacs.com.

- He experienced a documented LACourtConnect technical failure on January 20, 2026, and contemporaneous health limitations, which caused his nonappearance at the sanctions hearing despite earlier check-in efforts and contemporaneous screenshots.

Under the objective reasonableness standard, and in light of Code of Civil Procedure section 128.7(d)'s mandate that sanctions be limited to what is sufficient to deter repetition, Defendant respectfully submits that the sanctions order should be vacated or substantially reduced, and that a clear admonition and guidance from the Court—rather than a monetary penalty he cannot pay—will adequately deter any future procedural missteps.

II. PROCEDURAL BACKGROUND

This case arises from Plaintiff's 2022 unlawful detainer action against Defendant regarding the premises at 849 South Normandie Avenue, Unit #101, Los Angeles, California 90005. Plaintiff filed an unlawful detainer complaint, obtained a default judgment on or about November 29, 2022, and a writ of possession issued thereafter. On or about January 26, 2023, the Los Angeles County Sheriff's Department enforced the writ and removed Defendant from the premises. Defendant has been unhoused and living in unstable conditions since that lockout.

In the aftermath, Defendant pursued various appellate and post-judgment avenues, including multiple appeals that were ultimately dismissed on procedural grounds. During 2025, Defendant filed a series of ex parte applications in this Court seeking relief related to the default judgment, writ enforcement, and the consequences of the lockout, including applications for a temporary stay under Code of Civil Procedure section 918 and for relief under Code of Civil Procedure sections 473(b), 473(d) and 1179.

The Court admonished Defendant in written minute orders and in open court that continued filing of deficient ex parte papers—without proper declarations of notice, clear prayers for relief, or adequate supporting evidence—could result in sanctions. Plaintiff subsequently moved for sanctions under Code of Civil Procedure section 128.7 and California Rules of Court, rules 2.30 and 3.1204, seeking $4,605.29 based on more than ten hours of attorney time at $425 per hour plus costs.

On January 20, 2026, at 8:30 a.m. in Department 91, the Court held a hearing on the Order to Show Cause re Sanctions. Plaintiff's counsel appeared via LACourtConnect. Defendant attempted to appear remotely via LACourtConnect, and had checked in earlier that morning, but encountered an error when attempting to join the live session and was unable to connect to the courtroom. Defendant captured screenshots of the check-in and error message contemporaneously and later submitted them as part of his evidence packet.

By minute order and Notice of Ruling dated January 20, 2026, the Court found that Defendant's conduct violated Code of Civil Procedure section 128.7(b), California Rules of Court, rules 2.30 and 3.1204, and the Department's standing orders, based on repeated ex parte filings in a closed unlawful detainer case, continued after admonitions. The Court declined to award Plaintiff the full $4,605.29 requested and instead awarded sanctions of $2,185.54, representing 10.75 hours at a reduced rate of $300 per hour plus $35.54 in costs, payable within thirty (30) days of Plaintiff giving notice of the ruling.

Defendant thereafter prepared and filed a comprehensive Opposition to the Order to Show Cause re Sanctions, together with a Notice of Notice and Errata Packet, correcting earlier proof-of-service language, clarifying that service was made by electronic mail only, standardizing his

contact information and captions, and consolidating his requests for relief. Defendant also contacted LACourtConnect Support in writing to request confirmation of his registration and error logs for January 20, 2026, and, as of the date of this Motion, has not received a substantive response.

Defendant now moves to vacate or substantially modify the sanctions order in light of his good-faith course correction, the documented LACourtConnect technical failure and health limitations surrounding the hearing, and the statutory requirement that sanctions be limited to what is necessary to deter, not to punish.

III. LEGAL STANDARDS

A. Code of Civil Procedure § 128.7 and California Rules of Court, rule 2.30

Code of Civil Procedure section 128.7, modeled on Federal Rule of Civil Procedure 11, requires an attorney or unrepresented party who presents a pleading, motion, or written notice of motion to certify that, after an inquiry reasonable under the circumstances:

1. The paper is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation (CCP § 128.7(b)(1)); and
2. The claims, defenses, and other legal contentions are warranted by existing law or by a non-frivolous argument for its extension, modification, or reversal (CCP § 128.7(b)(2)).

If the Court determines that section 128.7 has been violated, any sanction "shall be limited to what is sufficient to deter repetition of such conduct or comparable conduct by others similarly

situated." (CCP § 128.7(d).) Courts apply an objective reasonableness standard, not a subjective bad-faith test, and may consider the litigant's self-represented status, the complexity of the procedural posture, and surrounding circumstances.

Separately, California Rules of Court, rule 2.30 authorizes monetary sanctions for failure without good cause to comply with applicable court rules or local rules, but only after notice and an opportunity to be heard. Rule 3.1204 governs ex parte notice and declaration requirements; its violation may be addressed through admonitions or tailored orders to ensure future compliance, particularly where no material prejudice is shown.

B. Code of Civil Procedure § 473(b) (Mistake, Inadvertence, Surprise, or Excusable Neglect)

Code of Civil Procedure section 473(b) authorizes relief from orders and judgments taken against a party as a result of the party's mistake, inadvertence, surprise, or excusable neglect. Courts have long recognized that significant health issues, technological failures, and honest procedural confusion by self-represented litigants can give rise to excusable neglect, particularly where the litigant has otherwise acted diligently and in good faith.

C. Due Process Considerations

Due process requires that a party subject to sanctions or adverse orders be given notice and an opportunity to be heard. Where a litigant attempts to appear remotely but is prevented by documented technical failures beyond his control, or where illness impairs participation, the fairness of proceeding in the litigant's absence is called into question—especially when the sanction imposed is substantial relative to the litigant's means and the underlying stakes.

IV. ARGUMENT

A. Defendant's Ex Parte Filings Were the Product of Confusion and Desperation, Not an Improper Purpose

Defendant does not deny that he filed multiple ex parte applications in 2025 related to the 2022 unlawful detainer judgment, writ of possession, and subsequent lockout. He acknowledges that the Court found many of those papers deficient under California Rules of Court, rule 3.1204, and Department 91's standing order, and that the Court warned him that repeated noncompliance could result in sanctions.

However, Defendant's purpose was not to harass Plaintiff or to needlessly increase costs. Defendant has been unhoused since the Sheriff's lockout and has been attempting—without counsel—to obtain some form of review or remedial relief from a judgment he experienced as an abrupt and harsh forfeiture of his home. His filings, though imperfect, were aimed at securing relief he believed was available: vacating or modifying a default judgment entered without what he understood as a meaningful opportunity to be heard, and addressing the ongoing impacts of homelessness and loss of stabilized housing.

Under section 128.7(b)(1), the question is whether the filings were "presented primarily for an improper purpose," not whether they ultimately succeeded. In light of Defendant's self-represented status, housing instability, and repeated efforts to correct course, the record supports a characterization of earnest but confused attempts to navigate a complex post-judgment landscape—not an abuse of process or bad-faith harassment.

B. All Procedural Defects Have Been Cured

In response to the Court's admonitions and Plaintiff's criticisms, Defendant has undertaken concrete corrective steps to cure the procedural and clerical defects previously identified. These include:

1. **Corrected Proofs of Electronic Service.** Defendant has prepared and filed corrected proofs of electronic service (including POS-050/EFS-050) that bear the correct case number, specify electronic service by email only, accurately state the date and approximate time of service, and identify Plaintiff's designated electronic service address of record, eservice@loacs.com, with courtesy copies to individual counsel as appropriate.
2. **Removal of Inaccurate Mail Language.** In prior drafts, Defendant used boilerplate language suggesting service by U.S. Mail when, in fact, the documents at issue were served only by electronic mail. Through his Notice of Notice and Errata Packet, Defendant has now removed that inaccurate mail language and expressly clarified that service was made via email only for those filings.
3. **Standardized Contact Information and Captions.** Defendant has standardized his contact information across all current filings, including this Motion, and has cleaned up duplicate or stray caption blocks. His papers now uniformly reflect:
    - c/o 1738 N. Las Palmas Avenue, Los Angeles, CA 90028
    - Mailing: 1929 Wilcox Avenue, Apt. #1, Hollywood, CA 90068
    - Telephone: (323) 387-6873
    - Email: dlb@dlbllclaw.com / derniercrilamont@yahoo.com.
4. **Consolidation of Requests for Relief.** Rather than continuing to file overlapping ex parte applications, Defendant has consolidated his sanctions-related arguments and

remedial requests into this single, fully-supported Motion and accompanying Memorandum of Points and Authorities, supported by a detailed declaration and exhibits.

All procedural defects previously identified by the Court and/or highlighted by Plaintiff have now been cured, including: (1) corrected electronic proofs of service with accurate case number, service method (email-only), and time; (2) standardized contact information and captions; and (3) consolidation of Defendant's requests for relief into a single, fully-supported motion. See concurrently filed Notice of Notice and Errata, Errata Packet Index, and Corrected Proofs of Electronic Service.

Given these cures, the ongoing need for a substantial monetary sanction as a deterrent is significantly diminished.

C. Defendant's Nonappearance at the January 20, 2026 Hearing Was the Result of Documented LACourtConnect Technical Failure and Health Limitations, Constituting Excusable Neglect

The sanctions order was issued at a hearing Defendant attempted, but was unable, to attend remotely via LACourtConnect. Defendant had already checked in for the January 20, 2026 8:30 a.m. hearing earlier that morning and captured a screenshot of the check-in confirmation. When he attempted to join the live hearing, he received an error message indicating a technical problem with the connection. He attempted to reconnect and ultimately documented the error via additional screenshots.

Defendant has since emailed LACourtConnect Support, attaching the screenshots, and requested confirmation of his registration and any error logs for the January 20, 2026 session. As of the

date of this filing, Defendant has not received a substantive response. Defendant's Declaration (Exhibit H et seq.) lays out this timeline and attaches the check-in and error screenshots.

Separately, Defendant's health was compromised during the same week, as reflected in a Kaiser work-status note indicating a diagnosis of upper respiratory illness and a medically-advised off-work period around January 21–23, 2026. While the note is not specific to the hearing date, it corroborates that Defendant was experiencing legitimate health issues in the same timeframe.

Under Code of Civil Procedure section 473(b), these combined circumstances—documented remote-access failure and contemporaneous health limitations—constitute mistake, inadvertence, surprise, or excusable neglect sufficient to warrant relief from an order entered in Defendant's absence, particularly where Defendant had already filed an Opposition, has since corrected procedural defects, and promptly moved for reconsideration or modification once he understood the ruling.

Proceeding with a substantial sanctions order under these conditions, without Defendant's meaningful participation, raises due-process concerns and supports vacating or modifying the order.

D. The Sanctions Amount Is Excessive and Punitive Given Defendant's Indigent, Unhoused Status and the Statutory Deterrence Requirement

Even if the Court concludes that some sanction is appropriate under Code of Civil Procedure section 128.7 or California Rules of Court, rule 2.30, the statute requires that any sanction be "limited to what is sufficient to deter repetition." (CCP § 128.7(d).) Plaintiff initially sought

$4,605.29 in fees and costs. The Court already exercised discretion by reducing the hourly rate and awarding $2,185.54 instead, based on 10.75 hours at $300 per hour plus $35.54 costs.

For a self-represented, indigent litigant living without stable housing, however, a $2,185.54 monetary sanction is effectively uncollectible and operates as a punitive measure rather than a tailored deterrent. Defendant does not have the resources to pay such an amount and is actively struggling to meet basic survival needs.

Defendant respectfully submits that the following factors support vacating or substantially reducing the sanctions:

1. **Indigent, Unhoused Status.** Defendant has been unhoused since January 2023 and remains in unstable living conditions. He does not have steady income or assets from which to satisfy a sanctions award.
2. **Good-Faith Course Correction.** Defendant has demonstrably changed his practices by curing past defects, correcting proofs of service, standardizing his contact information, and consolidating his requests into a single, properly-noticed motion.
3. **Public-Interest Nature of the Underlying Issues.** Defendant's filings arise from alleged due-process, housing, and relocation issues in the context of an unlawful detainer and lockout, not from a desire to harass or exploit the judicial system.
4. **Less Restrictive Means to Deter.** A clear admonition on the record, coupled with explicit guidance regarding any further filings and the Court's expectations for ex parte practice, would more than suffice to deter Defendant from repeating the conduct the Court found problematic.

In light of these factors, Defendant requests that the Court vacate the sanctions order. In the alternative, Defendant asks that any monetary sanction be reduced to a nominal amount consistent with his means and the statutory goal of deterrence rather than punishment.

E. The Court Should Exercise Its Discretion to Vacate or Substantially Modify the Sanctions Order and Provide Prospective Guidance

This Court retains broad discretion in fashioning a response to perceived misuse of judicial process. In the context of a concluded unlawful detainer case that has already resulted in a Sheriff lockout and homelessness, a substantial monetary sanction against an indigent, self-represented tenant is not necessary to preserve the integrity of the process.

Defendant respectfully requests that the Court:

1. Vacate the January 20, 2026 sanctions order in its entirety;
2. In the alternative, substantially reduce any sanctions to a nominal amount and stay enforcement;
3. Provide explicit, written guidance as to what, if any, further filings may properly be brought in this case versus issues that must be pursued in separate civil actions; and
4. Confirm Defendant's obligation to use Plaintiff's designated electronic service address, eservice@loacs.com, and to comply strictly with ex parte requirements should any future emergency relief be sought.

A vacatur or substantial modification of the sanctions order, combined with clear prospective guidance, will serve the deterrent purpose of section 128.7 without imposing an unpayable penalty on an indigent litigant who has already demonstrated good-faith efforts to correct course.

V. CONCLUSION

For the foregoing reasons, Defendant respectfully requests that the Court vacate the sanctions order entered on or about January 20, 2026, discharge the Order to Show Cause re Sanctions, and deny Plaintiff's request for monetary sanctions. In the alternative, Defendant requests that any monetary sanctions be substantially reduced to a nominal amount, that enforcement be stayed, and that the Court provide clear, prospective guidance regarding any future filings in this matter.

DATED: January 27th, 2026

/s/ Derrick LaMont Beverly

DERRICK LAMONT BEVERLY

Defendant, In Propria Persona Sui Juris

DECLARATION OF DERRICK LAMONT BEVERLY

IN SUPPORT OF MOTION TO VACATE OR MODIFY SANCTIONS ORDER

AND OPPOSITION TO ORDER TO SHOW CAUSE RE SANCTIONS

I, DERRICK LAMONT BEVERLY, declare:

1. I am the defendant and judgment debtor in this action, Fox Normandie Apartments, LP v. Derrick L. Beverly, Los Angeles Superior Court Case No. 22STUD06657. I make this declaration in support of my Motion to Vacate or Modify Sanctions Order and in opposition to the Court's Order to Show Cause re Sanctions. I have personal knowledge of the facts set forth herein and, if called as a witness, could and would competently testify thereto.
2. I have been self-represented ("in propria persona") throughout the post-judgment and appellate proceedings in this matter. I do not have formal legal training. Since the Sheriff lockout on or about January 26, 2023, I have been unhoused and living in unstable conditions, often without consistent access to secure shelter, internet, or printing.

3. My ex parte filings in 2025 were motivated by a desire to obtain some review or remedial relief from what I experienced as a harsh forfeiture of my home and the resulting homelessness. I did not intend to harass Plaintiff or its counsel, or to drive up litigation costs. I believed, in good faith, that the law allowed me to seek relief from default judgment, to request stays of enforcement, and to bring forward concerns about notice and the lockout.

4. I acknowledge that the Court has previously admonished me regarding my ex parte practice, including issues with declarations of notice under California Rules of Court, rule 3.1204, deficiencies in identifying specific relief requested, and lack of supporting evidence. I have read and attempted to understand the Court's October and December 2025 minute orders and Department 91's standing order.

5. With assistance, I have taken concrete steps to correct the procedural defects the Court identified. This includes preparing and filing:

   a. A Notice of Notice and Errata Packet that removes inaccurate boilerplate language suggesting service by U.S. Mail where no mailing actually occurred, and clarifies that my service for the relevant filings was by electronic mail only;

   b. Corrected Proofs of Electronic Service (including Judicial Council form POS-050/EFS-050) that bear the correct case number, identify Plaintiff's designated electronic service address of record (eservice@loacs.com), specify electronic mail as the sole method of service, and accurately state the date and approximate time of transmission; and

c. Standardized contact information and caption language across my filings, including the address, telephone number, and email addresses listed in the caption of this Motion.

6. On January 9, 2026, Plaintiff's office confirmed in writing that its designated electronic service address for this case is eservice@loacs.com, and that this address should be used for electronic service of documents and ex parte notice. I now consistently use eservice@loacs.com for service in this case, with courtesy copies to individual counsel as appropriate.
7. On January 20, 2026, the Court held a hearing in Department 91 on the Order to Show Cause re Sanctions at 8:30 a.m. I registered to appear via LACourtConnect and checked in for the hearing at approximately 6:00 a.m. that morning. I captured a screenshot of my check-in confirmation, which is attached as Exhibit H.
8. Shortly before 8:30 a.m., I attempted to join the live LACourtConnect session for Department 91. When I did so, I received an error message indicating that the connection could not be completed. I attempted to reconnect and again encountered an error. I captured screenshots of the error messages, which are attached as Exhibit I.
9. On or about January 24, 2026, I sent an email to LACourtConnect Support requesting confirmation that I was registered for the January 20, 2026 hearing and asking for any error logs or information regarding my attempted connection. As of the date of this Declaration, I have not received a substantive response. A copy of my email to LACourtConnect Support is attached as Exhibit J.
10. In the same general timeframe, I experienced upper respiratory illness. I received a Kaiser work-status note indicating that I was medically restricted from work for a period around January 21–23, 2026 due to an upper respiratory infection. A copy of that work-

status note is attached as Exhibit K. Although the note does not specifically reference the January 20 hearing, it corroborates that I was dealing with health issues during that week.

11. I did not intentionally fail to appear at the January 20, 2026 hearing. I attempted to participate remotely via LACourtConnect, was prevented from doing so by technical errors I documented, and was limited by health issues in my ability to troubleshoot those errors in real time.

12. I do not have the financial ability to pay $2,185.54 in sanctions. I have no stable employment, no savings, and I am currently unhoused. Paying such an amount is impossible for me without sacrificing basic necessities.

13. I understand that the Court has serious concerns about repeated ex parte filings in a closed unlawful detainer case. I take those concerns seriously. My intention going forward is to:

a. Avoid serial ex parte applications and instead present my arguments through properly noticed motions, such as this Motion to Vacate or Modify Sanctions Order;

b. Strictly comply with ex parte rules, including California Rules of Court, rules 3.1203 and 3.1204, if emergency relief is ever truly necessary; and

c. Use Plaintiff's designated electronic service address, eservice@loacs.com, for all electronic service, confirming date and approximate time of transmission in my proofs of service.

14. I submit this Declaration and the attached exhibits in good faith, to demonstrate my efforts to correct past procedural missteps, to explain the circumstances surrounding my

nonappearance on January 20, 2026, and to request equitable relief from a sanctions order that would otherwise operate as a punitive, unpayable penalty rather than a deterrent.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on January 27th, 2026, at Los Angeles, California.

/s/ Derrick LaMont Beverly

DERRICK LAMONT BEVERLY

EXHIBIT LIST

(MOTION TO VACATE OR MODIFY SANCTIONS ORDER)

The following exhibits are referenced in and submitted with Defendant's Motion to Vacate or Modify Sanctions Order and supporting Declaration:

- **Exhibit A** – Court's Notice of Ruling / Minute Order re Order to Show Cause re Sanctions, dated January 20, 2026.
- **Exhibit B** – Opposition to Order to Show Cause re Sanctions (as filed), including prior Memorandum of Points and Authorities.
- **Exhibit C** – Notice of Notice and Errata Packet (Notice, Index, Declaration, Exhibit 1 – Errata Items, and Proof of Electronic Service).
- **Exhibit D** – Corrected Proofs of Electronic Service (POS-050/EFS-050) reflecting email-only service, correct case number, and standardized contact information.

- **Exhibit E** – LACourtConnect check-in screenshot for January 20, 2026 hearing (e.g., "Exhibit_H_CourtConnect_CheckIn_2026-01-20.png").
- **Exhibit F** – LACourtConnect error screenshot(s) showing inability to join the hearing ("Exhibit_I_CourtConnect_Error_2026-01-20.png").
- **Exhibit G** – Email from Defendant to LACourtConnect Support dated on or about January 24, 2026 requesting confirmation of registration and error logs, with any available automated acknowledgment.
- **Exhibit H** – Kaiser work-status note indicating upper respiratory illness and medically-advised off-work period in January 2026 ("Exhibit_J_Kaiser_Work_Status_2026-01-21.pdf").
- **Exhibit I** – Any additional correspondence, support emails, or confirmations relevant to technical difficulties or service corrections.

NOTICE OF PROOF AND PROOF OF ELECTRONIC SERVICE

(MOTION TO VACATE OR MODIFY SANCTIONS ORDER)

I am at least 18 years old, not a party to this action with respect to service, and my contact information is:

c/o 1738 N. Las Palmas Avenue
Los Angeles, California 90028
Mailing: 1929 Wilcox Avenue, Apt. #1
Hollywood, California 90068
Email: dlb@dlbllclaw.com / derniercrilamont@yahoo.com

On Tuesday, January 27th, 2026, at approximately 8:45 p.m. Pacific Time, I electronically transmitted true and correct copies of the following documents:

1. Notice of Motion and Motion to Vacate or Modify Sanctions Order; Opposition to Order to Show Cause re Sanctions; Memorandum of Points and Authorities;

2. Declaration of Derrick LaMont Beverly in Support of Motion to Vacate or Modify Sanctions Order and Opposition to Order to Show Cause re Sanctions; and

3. Exhibit List and Exhibits A–I (as available at the time of service),

to Plaintiff's designated electronic service address of record:

eservice@loacs.com

with a courtesy copy transmitted to:

ada@loacs.com

The transmission was sent from my electronic service address, dlb@dlbllclaw.com (with backup account: derniercrilamont@yahoo.com), and was reported as sent without error. I am informed and believe that eservice@loacs.com is the email address designated by the Law Offices of Ada R. Cordero-Sacks for electronic service of documents and ex parte notice in this case.

I did not serve these documents by U.S. Mail or by any method other than electronic mail.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on Tuesday, January 27th, 2026, at Los Angeles, California.

/s/ Derrick LaMont Beverly

DERRICK LAMONT BEVERLY

Defendant, In Propria Persona Sui Juris